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1. **Title of Document:** Master Indenture of Trust and Restrictions For Charlestowne Plat 1
2. **Date of Document:** JANUARY 3, 2006
3. **Grantor(s):** KRK Development, LLC
4. **Grantee(s):** Charlestowne Master Association
5. **Grantee's Mailing Address:** c/o Foresight Development Group
21 Jason Court
St. Charles, Missouri 63304
6. **Legal Description:** See Exhibit A annexed to the document
7. **Reference(s) to Book and Page(s):** N/A

Note: The terms "Grantor" and "Grantee" as used in this Cover Page are for recording and indexing purposes only. The instrument itself may refer to the parties by other designations.

MASTER INDENTURE OF TRUST AND RESTRICTIONS FOR
CHARLESTOWNE PLAT 1

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EXHIBIT A - LEGAL DESCRIPTION

EXHIBIT A-1 - VILLAGE A

EXHIBIT A-2 - VILLAGE B

EXHIBIT A-3 - VILLAGE C

RECORD AS IS

MASTER INDENTURE OF TRUST AND RESTRICTIONS FOR
CHARLESTOWNE PLAT 1
ST. CHARLES, MISSOURI

THIS MASTER INDENTURE OF TRUST AND RESTRICTIONS FOR CHARLESTOWNE PLAT 1 (the "Master Indenture"), made and entered into this 2nd day of JANUARY, 2006, by and between KRK DEVELOPMENT, LLC, a Missouri limited liability company, hereinafter referred to as "Grantor," and CHARLESTOWNE MASTER ASSOCIATION, a Missouri not-for-profit corporation, hereinafter referred to as the "Association" or for purposes of recording this Master Indenture in the St. Charles County Records, "Grantee."

WITNESSETH THAT:

WHEREAS, Grantor is the owner of the tract of real property (the "Property") located in St. Charles, Missouri, described on Exhibit A attached hereto and incorporated herein by reference; and

WHEREAS, Grantor has or will cause the Property to be platted and subdivided into the following separate and distinct villages:

- (i) Village A, Townhomes at Charlestowne; and;
- (ii) Villages B and C, Single Family Homes at Charlestowne.

(sometimes hereinafter collectively referred to as the "Subdivision" or individually as a "Village"), and has caused or will cause the record plat(s) of the Subdivision to be recorded in the St. Charles County Records; and

WHEREAS, portions of the Property may be dedicated to the public for streets, roadways, drainage, flood control and general public use, and other portions may be reserved for streets, common ground and easements which are for the exclusive use and benefit of the residents of the Subdivision or of a Village; and

WHEREAS, it is the purpose and intention of this Master Indenture to protect the Subdivision against certain uses, and to apply the plan contained in this Master Indenture to all of said land described herein, including all Common Ground, and mutually to benefit, guard and restrict future residents of the Subdivision and to foster their health and safety; and

WHEREAS, all reservations, limitations, conditions, easements and covenants herein contained (all of which are sometimes hereafter termed "restrictions") are jointly and severally for the benefit of all persons who may purchase, hold or reside upon the tract covered by this instrument; and

WHEREAS, Grantor will also record separate declarations and/or indentures for some or all of the Villages (hereinafter sometimes collectively referred to as the "Subindentures" and individually as a "Subindenture") which will be subordinate to this Master Indenture, but which will contain covenants and restrictions unique to the portion of the Property thereby encumbered.

NOW, THEREFORE, in consideration of the premises and of the mutual promises, covenants and agreements made by the parties hereto each to the other, the receipt and sufficiency of which are hereby acknowledged, the parties hereto COVENANT and AGREE to and with each other, collectively and individually, for themselves, their heirs, successors and assigns, and for and upon behalf of all persons who may hereafter derive title to or otherwise hold through them, together with their heirs, successors or assigns, any of the lots and parcels of land in the Subdivision, all as hereinafter set forth:

ARTICLE I

DEFINITION OF TERMS

The following terms when used in this Master Indenture (unless the context requires otherwise) shall have the following meanings:

1. "Area of Common Responsibility" shall mean and refer to the Common Ground, together with such other areas, if any, for which the Association has or assumes responsibility pursuant to the terms of this Master Indenture.
2. "Association" shall mean and refer to the Charlestowne Master Association, a Missouri not-for-profit corporation, and its successors and assigns.
3. "Board" or "Directors" shall mean the Board of Directors of the Association.
4. "City" shall mean and refer to the City of St. Charles, Missouri, a municipal corporation and political subdivision of the State of Missouri.
5. "Common Ground" shall mean and refer to all real property and the improvements thereon owned by the Association and all easements, licenses and other rights held by the Association for the common use and enjoyment of all Owners including, without limitation, parks, open spaces, cul-de-sac islands, recreational facilities, lakes, streets, designed off-street parking spaces, paths, trails, walkways, storm water (including detention basins) and sanitary sewers and drainage facilities, retaining walls, subdivision entrance ways, monuments and gates, street lights, and other such areas and facilities as may be shown on the record plat(s) of the Subdivision. Nothing hereinabove contained shall be deemed a representation that any of the enumerated facilities are or will be included in the Subdivision or that any such facilities will be constructed upon Common Ground.

6. **"Consumer Price Index"** shall mean and refer to the Consumer Price Index For All Urban Consumers, All Items, St. Louis, Missouri (1993-95=100) published by the Bureau of Labor Statistics, United States Department of Labor.
7. **"County"** shall mean and refer to St. Charles County, Missouri.
8. **"Grantor"** shall mean and refer to KRK Development, LLC, a Missouri limited liability company, its successors and assigns, including, but not limited to, any builder or developer who purchases vacant Lots or parcels of land constituting a portion of the Property for the purpose of building residences thereon for sale to third persons.
9. **"Living Unit"** shall mean and refer to any structure constructed in the Subdivision designed and intended for independent residential use.
10. **"Lot"** shall mean and refer to any single family, detached residential lot shown on the recorded subdivision plat(s) of the Property.
11. **"Master Indenture"** shall mean and refer to this Master Indenture of Trust and Restrictions for Charlestowne Plat 1 St. Charles, Missouri, as from time to time amended.
12. **"Member"** shall mean and refer to a member in the Association.
13. **"Mortgage"** shall mean and refer to a mortgage, a deed of trust, a deed to secure debt, or any other form of security instrument affecting title to any Lot. The term "Mortgagee" shall refer to a beneficiary or holder of a Mortgage.
14. **"Owner"** shall mean and refer to the record owner, whether one or more persons or entities, of fee simple title to any Lot or Living Unit, including contract sellers but excluding those having such interests as security for the performance of an obligation and excluding Grantor.
15. **"Person"** shall mean and refer to a natural person, a corporation, a partnership, a trustee, or any other legal entity.
16. **"Prime Rate"** shall mean for any day, the highest rate from time to time reported in the Money Rates column or any successor column of The Wall Street Journal (the "Journal"), currently defined as being the base rate on corporate loans posted by at least seventy-five percent (75%) of the nation's thirty (30) largest banks, even if such rate was never actually charged by such bank. In the event the Journal publishes more than one rate, the highest of such rates shall be the "Prime Rate," or if the Journal publishes a retraction or correction of the rate, the new rate shall be the "Prime Rate." In the event the Journal ceases publishing the Prime Rate, the "Prime Rate" shall mean the from time-to-time publicly announced floating prime rate of interest charged by Bank of America, N.A., St. Louis, Missouri, or its successors.

17. "Property" shall mean and refer to the real property described on Exhibit A attached hereto and incorporated herein by reference.
18. "Record," "Recording," or "Recorded" shall mean and refer to the filing of a legal instrument with the Recorder of Deeds for the County, or such other place as may be designated as the official location for recording deeds, plats, and similar documents affecting title to real estate.
19. "Single Family Association" shall mean the homeowners association organized to administer Village B and Village C of the Subdivision.
20. "Special Assessment" shall mean and refer to assessments levied in accordance with Article IX, Section 5 of this Master Indenture.
21. "Specific Assessment" shall mean and refer to assessments levied in accordance with Article IX, Section 6 of this Master Indenture.
22. "Subdivision" shall mean and refer to the subdivision to be developed on the Property under the name "Charlestowne."
23. "Subindenture" shall mean and refer to a Recorded instrument which designates a Village and imposes additional restrictions and obligations on the land described in such instrument.
24. "Townhome Association" shall mean the homeowners association organized to administer Village A of the Subdivision.
25. "Village A" shall mean the portion of the Subdivision described on Exhibit A-1 attached hereto and incorporated herein by reference.
26. "Village Associations" shall mean and refer to the Single Family Association and the Townhome Association, and "Village Association" shall refer to either one of them.
27. "Village B" shall mean the portion of the Subdivision described on Exhibit A-2 attached hereto and incorporated herein by reference.
28. "Village C" shall mean the portion of the Subdivision described on Exhibit A-3 attached hereto and incorporated herein by reference.
29. "Village Directors" shall mean and refer to the directors of the respective Village Associations.
30. "Villages" shall mean and refer to the Village A, Village B and Village C, and "Village" shall refer to any one of them.

ARTICLE II

DURATION OF TRUST

The trust created under this Master Indenture shall continue until such time as the plat(s) of the Subdivision may be vacated by the City, or its successors, after which period of time fee simple title to the Common Ground shall vest in the then record Owners of the Lots constituting a part of the Property, as tenants in common; provided, however, that all of the rights, powers and authority conferred upon the Association shall continue to be possessed by said Association. The rights of said tenants in common shall only be appurtenant to and in conjunction with their ownership of Lots in the Subdivision, and any conveyance or change of ownership of any Lot shall carry with it ownership in Common Ground so that none of the Owners of Lots and none of the owners of the Common Ground shall have such rights of ownership as to permit them to convey their interest in the Common Ground except as is incident to the ownership of a Lot, and any sale of any Lot shall, without specifically mentioning it, carry with it all the incidents of ownership of the Common Ground.

ARTICLE III

RESERVATION OF EXPENDITURES

Grantor reserves the right to receive and retain any money consideration which may be refunded or allowed on account of any sums previously expended or subsequently provided for sewers, gas pipes, water pipes, conduits, poles, wires, street lights, roads, streets, recording fees, subdivision fees, consultation fees or other fees, charges and expenses incurred with respect to the Property.

ARTICLE IV

THE ASSOCIATION AND ITS MEMBERS

1. Function of Association. The Association is responsible for management, maintenance, operation and control of the Common Ground and for enforcement of this Master Indenture.

2. Membership. Every Owner shall be a Member of the Association. There shall be only one membership per Lot. If a Lot is owned by more than one Person, all co-Owners shall share the privileges of such membership, subject to reasonable Board regulation and the restrictions on voting set forth in Article IV, Section 3 of this Master Indenture, and all such co-Owners shall be jointly and severally obligated to perform the responsibilities of Owners. The membership rights of an Owner which is not a natural person may be exercised by any officer, director, partner or trustee, or by the individual designated from time to time by the Owner in a written instrument provided to the Secretary of the Association.

3. Voting. The Association shall have two classes of membership, i.e., Class "A" and Class "B."

(a) Class "A." Class "A" Members shall be all Owners except the Class "B" Member, if any. Class "A" Members shall have one equal vote for each Lot in which they hold the interest required for membership under Article IV, Section 2 of this Master Indenture, except that there shall be only one vote per Lot. No vote shall be exercised for any property which is exempt from assessment under Article IX, Section 8 of this Master Indenture.

(b) Class "B." The Class "B" Member shall be the Grantor. The Class "B" Member shall be entitled to three (3) votes for each Lot owned.

The Class "B" membership shall terminate upon the earlier of:

(i) when the total number of votes held by the Class "A" Members equal the total number of votes held and attributable to the Lots owned by the Class "B" Member; or

(ii) December 31, 2015; or

(iii) when Grantor, in its sole discretion, so determines and declares in an instrument recorded in the County Records.

Upon termination of the Class "B" membership, Grantor shall be a Class "A" Member entitled to Class "A" votes for each Lot which it owns.

ARTICLE V

DESIGNATION AND SELECTION OF DIRECTORS AND MEETINGS OF MEMBERS

1. Original Directors. The Board of Directors of the Association shall consist of three (3) Members. The original Directors shall be Bradley M. Kazmaier, John W. Fischer and Geoffrey Steinback, who have consented to serve in such capacity until their successors are elected or appointed as hereinafter provided. Should an original Director or a successor Director appointed by Grantor resign other than as required by Section 2 of this Article IV, refuse to act, become disabled or die, Grantor shall have the power to appoint, by duly written, recorded instrument, a successor Director who shall serve until his successor is elected by the Members in the manner hereinafter provided.

2. Successor Directors.

(a) At such time as the Class "A" Members owning Lots in Village A have elected successor directors to replace all of the original Village Directors of the Townhome Association and

their appointed successors, Grantor shall cause the resignation of one (1) of the original Directors, and a successor Director shall be appointed by the Village Directors of the Townhome Association.

(b) At such time as the Class "A" Members owning Lots in Villages B and C have elected successor directors to replace two (2) of the original Village Directors of the Single Family Association and their appointed successors, Grantor shall cause the resignation of one (1) of the original Directors, and a successor Director shall be appointed by the Village Directors of the Single Family Association.

(c) At such time as the Class "A" Members owning Lots in Villages B and C have elected successor directors to replace the third (3rd) original Village Director of the Single Family Association and his/her appointed successor, Grantor shall cause the resignation of the third (3rd) original Directors, and a successor Director shall be appointed by the Village Directors of the Single Family Association.

(d) The Directors appointed by the Village Directors pursuant to the provisions of paragraphs (a), (b) and (c) above shall serve the following terms from the date of appointment of the last of them: the successor Director which was first appointed under said paragraphs shall serve for one (1) year; the successor Director which was appointed second shall serve for two (2) years; and the successor Director which was appointed third shall serve for three (3) years. Thereafter, all Directors shall be appointed for terms of three (3) years each.

3. Qualification of Directors. All successor Directors appointed by the Village Directors pursuant to Section 2 of this Article V shall be Owners in the Subdivision, or officers or agents of a corporate Owner, and if such Owner sells his or her Lot or resigns, refuses to act, becomes disabled or dies, the Village Directors responsible for appointing such Director shall appoint an Owner to act as the successor for the unexpired portion of such Director's term. Where the provisions of this Section cannot be fulfilled by reason of unfilled vacancies among the Village Directors, the remaining directors of the Association, if any, shall appoint an Owner from the represented Village or, if none are willing to serve, from elsewhere in the Subdivision, to fill the vacancy and complete the unexpired term.

4. Removal of Directors. (a) Any Director appointed by the Village Directors may be removed, with or without cause, by such Village Directors, and upon removal of a Director, a successor shall be appointed by such Village Directors to fill the vacancy for the remainder of the removed Director's term.

(b) Any Director appointed by the Village Directors who has three (3) consecutive unexcused absences from Board meetings, or who is more than thirty (30) days delinquent (or is the representative of a Member who is so delinquent) in the payment of any assessment or other charge due the Association, may be removed by a majority of the Directors present at a regular or special meeting at which a quorum is present, whereupon the Village Directors responsible for appointing such removed Director shall appoint a successor.

(c) This Section shall not apply to Directors appointed by the Class "B" Member. The Class "B" Member or its successor shall be entitled to appoint a successor to fill any vacancy on the Board resulting from the death, disability, or resignation of a Director appointed by or elected as a representative of the Class "B" Member.

5. Annual Meetings. The first meeting of the Members of the Association shall be held within one year after the date of appointment of the third director under Sections 2(a) - (c) of this Article V. Subsequent regular annual meetings shall be set by the Board so as to occur during the same quarter of the Association's fiscal year as that in which the first such election occurred on a date and at a time set by the Board.

6. Special Meetings. Special meetings of the Members may be called by any Director, and shall be called by the Directors upon written request by (10%) of the total Class "A" Members of the Association.

7. Notice of Meetings. (a) Written or printed notice stating the time and place of any meeting of the Members shall be delivered, either personally or by mail, to each Member entitled to vote at such meeting, not less than ten (10) nor more than fifty (50) days before the date of such meeting. In addition, in the case of a special meeting, the notice shall state the purpose or purposes for which the meeting is called; no business shall be transacted at a special meeting except as stated in the notice.

(b) If mailed, notice shall be deemed delivered when deposited with the United States Postal Service, postage prepaid, addressed to the Member at his or her address as it appears on the Association's records.

(c) Any Member may waive, in writing, notice of any meeting of the Members, either before or after such meeting, and waiver of notice of a meeting of the Members shall be deemed the equivalent of proper notice. Attendance at a meeting by a Member shall be deemed a waiver of notice unless such Member attends for the limited and specific purpose of objecting to lack of proper notice.

8. Quorum. (a) The presence of Members in person or by proxy representing 30% of the total Class "A" votes in the Association shall constitute a quorum at all Association meetings.

(b) If any meeting of the Association cannot be held because a quorum is not present, a majority of the Members who are present at such meeting may adjourn the meeting to a time not less than five (5) nor more than thirty (30) days from the time the original meeting was called. At the reconvened meeting, if a quorum is present, any business may be transacted which might have been transacted at the meeting originally called. Notice of the time and place for reconvening the meeting shall be given to Members in the manner prescribed for regular meetings.

(c) Members present at a duly called or held meeting at which a quorum is present may continue to do business until adjournment, notwithstanding the withdrawal of enough Members to

leave less than a quorum, provided that any action taken is approved by at least a majority of the votes required to constitute a quorum.

9. Voting and Proxies. (a) The voting rights of the Members shall be as set forth in this Master Indenture. When a quorum is present at any duly called meeting, a majority of the votes cast shall decide any question brought before the meeting, unless the question is one which, by express provision of the Missouri Not-For-Profit Corporation Act (the "Act") or this Master Indenture, requires a different vote, in which case such express provision shall govern and control the decision of such question.

(b) Members may vote in person or by proxy. On any matter as to which a Member is entitled personally to cast the vote for his or her Lot, such vote may be cast in person or by proxy, subject to the limitations of the Act relating to the use of general proxies and subject to any specific provision to the contrary in this Master Indenture.

(c) Every proxy shall be in writing specifying the Lot for which it is given, signed by the Member or his or her duly authorized attorney-in-fact, dated, and filed with the Secretary of the Association prior to the meeting for which it is to be effective. Unless otherwise specifically provided in the proxy, a proxy shall be presumed to cover all votes which the Member giving such proxy is entitled to cast, and in the event of any conflict between two or more proxies purporting to cover the same voting rights, the later dated proxy shall prevail, or if dated as of the same date, both shall be deemed invalid.

(d) Every proxy shall be revocable and shall automatically cease upon: (a) conveyance of any Lot for which it was given; (b) receipt by the Secretary of a written notice of revocation of the proxy or of the death or judicially declared incompetence of a Member who is a natural person; or (c) eleven (11) months from the date of the proxy, unless a shorter period is specified in the proxy.

10. Action Without a Meeting. Any action required or permitted by law to be taken at a meeting of the Members may be taken without a meeting, without prior notice and without a vote if written consent specifically authorizing the proposed action is signed by the Members holding at least the minimum number of votes necessary to authorize such action at a meeting if all Members entitled to vote thereon were present. Such consents shall be signed within sixty (60) days after receipt of the earliest dated consent, dated and delivered to the Association. Such consents shall be filed with the minutes of the Association, and shall have the same force and effect as a vote of the Members at a meeting. Within ten (10) days after receiving authorization for any action by written consent, the Secretary shall give written notice summarizing the material features of the authorized action to all Members entitled to vote who did not give their written consent.

ARTICLE VI

ASSOCIATION'S DUTIES AND POWERS

The Association, acting by and through the Directors, shall have the rights, powers, duties and authorities described throughout this Master Indenture, and, without limiting the generality of any thereof, the following rights, powers, duties and authorities:

1. Acquisition, Disposition, Etc. of Common Ground. To acquire, receive, hold, convey, dispose of and administer the Common Ground in trust and in accordance with and pursuant to the provisions of this Master Indenture, and to otherwise deal with the Common Ground as hereinafter set forth. Without limiting the generality of the foregoing, during the period in which Grantor retains the right under Article XII, Section 4 of this Master Indenture to amend this Master Indenture, upon request of Grantor, the Directors shall cooperate with Grantor in its development of the Subdivision, and to facilitate such development, shall have the right, in their discretion, to adjust and reconfigure the Common Ground; to convey and exchange portions of the Common Ground to Grantor and the from time to time Owners of adjoining Lots; and to grant Grantor and the from time to time Owners of adjoining Lots easements over the Common Ground for appurtenances (including, but not limited to, patios, decks, driveways, sidewalks and retaining walls) to their Lots. The provisions of this Article VI, Section 1, shall not be amended, modified or deleted without the prior written consent of Grantor.

2. Control of Common Ground. To exercise such control over the easements, streets and roads, sidewalks (except for those easements, streets and roads and sidewalks which are now or may hereafter be dedicated to public bodies or agencies), entrances and entrance markers, retaining walls, lights, gates, park areas, lakes, cul-de-sac islands, medians, shrubbery, storm water sewers, sanitary sewer trunks and lateral lines, pipes, and disposal and treatment facilities constituting Common Ground as may be shown on the Record plat(s) of the Subdivision, as is necessary to maintain, repair, rebuild, supervise and assure the proper use thereof, including the right (to themselves and others to whom they may grant permission) to construct, operate and maintain on, under and over said easements, streets, sidewalks, sewers, pipes, poles, wires and other facilities and public utilities for services to the Lots, and the right to establish rules and regulations for the usage of the Common Ground, driveways, streets and parking lots in the Property.

3. Maintenance of Area of Common Responsibility. The Association shall maintain the Area of Common Responsibility, which shall include the following:

- (a) all portions of and structures situated on the Common Ground;
- (b) landscaping within public rights-of-way within or abutting the Villages;
- (c) such portions of any additional property included within the Area of Common Responsibility as may be dictated by this Master Indenture, a Record plat or any contract or agreement entered into by the Association; and

(d) all ponds, streams and/or wetlands located within the Property which serve as part of the stormwater drainage system for the Property, including improvements and equipment installed therein or used in connection therewith.

Unless otherwise expressly provided or agreed in writing, the costs associated with the maintenance, repair and replacement of the Area of Common Responsibility shall be a Common Expense.

4. Maintenance of Entrance Monument Easement. There are or may hereafter be created and established on the record plat(s) of the Subdivision entrance monument easements, and without limiting the generality of Article VI, Section 3 of this Master Indenture, the Association shall have the power, authority and responsibility to maintain, improve and repair any entrance monuments installed within such easements as part of the Common Ground, and shall include the cost thereof in the annual assessment levied pursuant to Article IX, Section 3 of this Master Indenture.

5. Maintenance of Detention Easements. There are or may hereafter be created and established on the record plat(s) of the Subdivision detention easements, and without limiting the generality of Article VI, Section 3 of this Master Indenture, unless and until accepted for public use and maintenance, the Association shall have the power, authority and responsibility to maintain, improve and repair such easements and detention basins as part of the Common Ground, and shall include the cost thereof in the annual assessment levied pursuant to Article IX, Section 3 of this Master Indenture.

6. Dedication. To dedicate to public use any private streets constructed or to be constructed in the Property whenever such dedication would be accepted by a public agency.

7. Easements. To grant easements for public streets, sewers, utilities and cable television on and over the Common Ground. The Association shall also have authority, in the Directors' discretion, to grant Grantor and the Owners easements to install and maintain electronic fences, patios, decks, driveways, sidewalks, retaining walls and similar such improvements on the Common Ground. Notwithstanding anything contained in this Master Indenture to the contrary, if required in connection with Grantor's or its successors' or assigns' development of property adjacent to the Property, the Association shall grant Grantor, the City, AmerenUE, Laclede Gas Company, SBC, Charter Communications Company, and other public utilities, cable and fiber optics companies and their respective successors and assigns, the perpetual right and easement to enter the Common Ground at any time and from time to time to erect, install, maintain, repair, rebuild and operate water, sewer, gas, telephone, power, cable television and fiber optics pipes, lines, poles and conduits including the right to clear the right-of-way for such pipes, lines, poles and conduits, and to keep it clear of brush and trees. The provisions of this Article VI, Section 7, shall not be amended, modified or deleted without the prior written consent of Grantor.

8. Enforcement. To prevent any infringement and to compel the performance of any restriction set out in this Master Indenture or established by law, and also any rules and regulations

issued by said Directors governing the use of the Common Ground or any matters relating thereto. The power and authority herein granted to the Association is intended to be discretionary and not mandatory, and shall not restrict the right of any Owner to proceed in his own behalf. Without limiting the generality of the foregoing, the Board may impose sanctions for violation of this Master Indenture including, without limitation, the following:

(i) imposing reasonable monetary fines which shall constitute a lien upon the violator's Lot;

(ii) suspending an Owner's right to vote;

(iii) suspending any services provided by the Association to an Owner or the Owner's Lot if the Owner is more than thirty (30) days delinquent in paying any assessment or other charge owed to the Association;

(iv) exercising self-help in any emergency situation (specifically including, but not limited to, the towing of vehicles that are in violation of parking rules and regulations), or taking action to abate any violation of this Indenture in a non-emergency situation;

(v) requiring an Owner, at its own expense, to remove any structure or improvement on such Owner's Lot or Living Unit in violation of this Master Indenture and to restore the Lot or Living Unit to its previous condition, and upon failure of the Owner to do so, the Board or its designee shall have the right to enter the property, remove the violation and restore the Lot or Living Unit to substantially the same condition as previously existed and any such action shall not be deemed a trespass; and

(vi) bringing suit at law or in equity to enjoin any violation or to recover monetary damages or both.

All remedies set forth in this Master Indenture shall be cumulative of any remedies available at law or in equity. In any action to enforce this Master Indenture, if the Association prevails, it shall be entitled to recover all costs, including, without limitation, attorneys fees and court costs, reasonably incurred in such action.

The decision to pursue enforcement in any particular case shall be left to the Board's discretion. A decision not to enforce shall not be construed a waiver of the right of the Association to enforce such provision at a later time under other circumstances or preclude the Association from enforcing any other covenant, restriction or rule.

The Association, by contract or other agreement, may permit the City and/or County to enforce ordinances within the Property for the benefit of the Association and its Members.

9. Vacant and Neglected Lots. To clean up rubbish and debris and remove grass and weeds from and to trim, cut back, remove, replace and maintain trees, shrubbery and flowers upon

any vacant or neglected Lots or parcels of land in the Subdivision, and to charge the Owners thereof with the expenses so incurred. In exercising their authority under this Section 9, neither the Association nor the Directors or their respective agents or employees shall be deemed guilty or liable for trespass or for any damage or injury occasioned by or in the course of any such abatement, removal or planting.

10. Insurance. To purchase and maintain in force such insurance as the Directors may deem appropriate, including, but not limited to, property insurance and liability insurance protecting the Directors and the Owners from any and all claims for personal injuries and property damage arising from use of the Common Property and facilities and worker's compensation insurance.

11. Employment. In exercising the rights, powers and privileges granted and in discharging the duties imposed upon the Association by the provisions of this Master Indenture, from time to time to enter into contracts, employ agents, servants and labor as they may deem necessary or advisable, and to defend suits brought against the Association or the Directors, individually or collectively, in their capacity as directors of the Association.

12. Condemnation. In the event it shall become necessary for any public agency to acquire all or any part of the Common Ground for a public purpose, the Directors are hereby authorized to negotiate with such public agency for such acquisition and to execute instruments necessary to that purpose. Should acquisition by eminent domain become necessary, only the Association need be made a party, and any proceeds received shall be held by the Association for the benefit of those entitled to the use of said Common Ground.

13. Variances. To grant variances from the provisions of this Master Indenture where, in the sole discretion of the Directors, due cause therefor is demonstrated by an Owner.

14. Indemnification of Officers, Directors and Others. (a) Subject to the indemnification provisions in Chapter 355 of Mo. Rev. Stat., as may be amended, the Association shall indemnify every officer, director, and committee member against all damages and expenses, including attorneys' fees, reasonably incurred in connection with any action, suit, or other proceeding (including settlement of any suit or proceeding, if approved by the then Board of Directors) to which he or she may be a party by reason of being or having been an officer, director, or committee member, except that such obligation to indemnify shall be limited to those actions for which liability is limited under this Section and Missouri law.

(b) The officers, directors, and committee members shall not be liable for any mistake of judgment, negligent or otherwise, except for their own individual willful misfeasance, malfeasance, misconduct, or bad faith. The officers and directors shall have no personal liability with respect to any contract or other commitment made or action taken in good faith on behalf of the Association (except to the extent that such officers or directors may also be Members of the Association).

(c) The Association shall indemnify and forever hold each such officer, director and committee member harmless from any and all liability to others on account of any such contract,

commitment or action. This right to indemnification shall not be exclusive of any other rights to which any present or former officer, director, or committee member may be entitled. The Association shall, as a Common Expense, maintain adequate general liability and officers' and directors' liability insurance to fund this obligation, if such insurance is reasonably available.

15. Powers of the Association Relating to Village Associations. (a) The Association shall have the power to veto any action taken or contemplated to be taken by any Village Association which the Board reasonably determines to be adverse to the interests of the Association or its Members. The Association also shall have the power to require specific action to be taken by any Village Association in connection with its obligations and responsibilities, such as requiring specific maintenance or repairs or aesthetic changes to be effectuated, and requiring that a proposed budget include certain items and that expenditures be made therefor.

(b) A Village Association shall take appropriate action required by the Association in a written notice within the reasonable time frame set by the Association. If the Village Association fails to comply, the Association shall have the right to effect such action on behalf of the Village Association, and levy Specific Assessments to cover the costs, as well as an administrative charge and sanctions.

16. Provision of Services. (a) The Association may provide, or provide for, services and facilities for the Owners and their Lots and Living Units, and shall be authorized to enter into and terminate contracts or agreements with other entities, including Grantor, to provide such services and facilities. The Board may charge use or service fees for any such services and facilities provided at the option of an Owner, or if provided to all Lots and Living Units, may include the costs thereof in the Association's budget as a Common Expense and assess it as part of the Assessment. By way of example, such services and facilities might include landscape maintenance, pest control service, telecommunications service, security, caretaker, transportation, fire protection, utilities, and similar services and facilities.

(b) Nothing in this Section shall be construed as a representation by Grantor or the Association as to what, if any, services shall be provided. In addition, the Board shall be permitted to modify or cancel existing contracts for services in its discretion. Non-use of services provided to all Owners or Lots and Living Units as a Common Expense shall not exempt any Owner from the obligation to pay assessments for such services.

ARTICLE VII

EASEMENTS

1. Association's Easements. (a) Without limiting the generality of any other provision of this Master Indenture, the Property shall be subject to a perpetual easement in gross in favor of the Association for ingress and egress to perform its obligations and duties as required by this Master Indenture. Should it be necessary to enter any Lot or Living Unit to effect a repair or to perform any maintenance or other duty of the Association under this Master Indenture, the employees, agents, contractors and subcontractors engaged by the Association shall have authority to do so upon presentation to the Owner of a work order or other directive from the Association.

(b) The Association is also hereby granted perpetual easements to maintain any portions of the Common Ground which encroach upon the Lots.

(c) All easements and rights herein established for the benefit of the Association shall run with title to the Property and be binding on the from time to time Owners, purchasers, Mortgagees and all other Persons having an interest in any Lot or Living Unit, whether or not such easements are mentioned or described in any deed of conveyance.

2. Owners' Easements. Perpetual easements are hereby established appurtenant to all Lots and Living Units for use by the Owners thereof, their families and guests, invitees and servants, of the Common Ground. Each Owner is further granted a perpetual easement, running with the ownership of his Lot or Living Unit, to use and occupy any portion of the improvements thereon including, but not limited to, the balcony, terrace, patio, deck, sidewalks, driveways and garage, if any, which are part of a Living Unit and the retaining wall(s), if any, on a Lot, should there be any encroachment on the Common Ground or any other Lot. All easements and rights herein established shall run with the land and inure to the benefit of and be binding on Grantor and any Owner, purchaser, Mortgagee or other Person having an interest in any portion of the Property, whether or not such easements are mentioned or described in any deed of conveyance.

3. Easement to Inspect and Right to Correct. Grantor reserves for itself and others it may designate the right to inspect, monitor, test, redesign, and correct any structure, improvement or condition which may exist on any portion of the Property, and a perpetual nonexclusive easement of access throughout the Property to the extent reasonably necessary to exercise such right. Except in an emergency, entry onto a Lot or parcel of the Property shall be only after reasonable notice to the Owner, and except as otherwise provided in this Master Indenture, no entry into a Living Unit shall be permitted without the consent of the Owner. The person exercising this easement shall promptly repair, at such person's own expense, any damage resulting from such exercise. Further, without limiting the generality of the foregoing, Grantor reserves the right to periodically enter upon the Common Ground to inspect the maintenance and upkeep of the Common Ground, including building exteriors, common mechanical systems, common structural items, landscaping, irrigation systems and common area amenities such as playgrounds and club houses that may have been constructed by Grantor. Grantor will schedule and coordinate its review of the Common Ground through the

president of the Board. During the inspection, Grantor will review and, if appropriate, make recommendations to the Association relating to the repair, maintenance and upkeep of the Common Ground. Grantor may also, if it so chooses, make repairs or take other corrective action with respect to repair or maintenance items that it identifies during the review.

ARTICLE VIII

SEWERS AND DRAINAGE FACILITIES

1. Association's Responsibility. (a) Unless and until accepted for public use and maintenance, the detention structures and all storm sewer pipes in the Subdivision shall be and remain private, and without limiting the generality of any other provision of this Master Indenture, the Association shall be responsible for the maintenance, repair and replacement of all such storm sewers, detention basins and other drainage facilities located in the Subdivision. Further, without limiting the generality of the foregoing, unless and until accepted for public use and maintenance, the Association shall be responsible for maintenance of any detention easements reflected on the record plat(s) of the Subdivision;

(b) Without limiting the generality of paragraph (a) of this Article VIII, Section 1, it is expressly acknowledged and agreed that Grantor has entered into a Joint Development Agreement (the "Development Agreement") dated September 29, 2004 with Titan Homes, Inc. ("Titan") with regard to the Grantor's development of the Subdivision and Titan's development of Charlestowne Plat 2 ("Plat 2"). The Development Agreement contemplates that Grantor or the Association shall enter into an additional written, Recorded agreement ("Reciprocal Agreement") with Titan (or the successor to Titan as owner of the common ground within Plat 2) for the purpose of defining and establishing the parties' respective rights and obligations for the maintenance and repair (and the shared costs thereof) of certain common utility facilities, the usage of which is to be shared by the Subdivision and Plat 2, including, but not necessarily limited to, the following utility facilities: storm water detention basins and related facilities and sanitary sewer lift station and force main. During the period in which Grantor retains the right under Article XII, Section 4 of this Master Indenture to amend this Master Indenture, Grantor shall negotiate the Reciprocal Agreement subject to the reasonable approval of, and execution by, the Directors.

(c) Grantor's obligations under the Development Agreement shall be and hereby are assigned to and assumed by the Association, which shall undertake and perform the obligations set forth in the Reciprocal Agreement as part of the Common Ground responsibilities and shall include the Subdivision's share of cost of such obligations in the annual assessment level under Article IX, Section 3 of this Master Indenture.

2. Owners' Responsibility. Each Owner shall be responsible for the maintenance, repair and replacement of the lateral sewer line or lines servicing such Owner's Lot.

ARTICLE IX

ASSESSMENTS

1. **General.** Grantor, for each Lot and parcel within the Subdivision, hereby covenants, and each Owner of any Lot by acceptance of a deed therefor, whether or not it shall be so expressed in any such deed or other conveyance, shall be deemed to covenant and agree to pay annual and special assessments, if any, from time to time fixed, levied and assessed in accordance with the provisions of this Master Indenture. The annual and special assessments levied hereunder together with interest thereon and costs of collection thereof shall be a charge on and continuing lien upon the Lot or parcel against which assessed. Each such assessment, together with interest thereon and cost of collection thereof, shall also be the personal obligation of the person who was the owner of the Lot or parcel at the time the assessment fell due.

2. **Purpose.** The assessments levied under this Article shall be used exclusively for the purpose of promoting the recreation, health, safety and welfare of the residents in the Villages, and in particular, for the rendering of services in the furtherance of such purposes including, but not limited to, the carrying out of all functions herein authorized, the acquisition, improvement, maintenance and operation of the Common Ground and all facilities thereon and easements established herein or on the plat(s) of the Subdivision and the payment of taxes on the Common Ground.

3. **Annual Assessments.** Until increased as herein authorized, the maximum annual assessment upon and against the Lots and Living Units shall be initially established by the directors provided, however, that the Directors may increase such assessment for any assessment year by an amount which is equal to the increase in the Consumer Price Index last published prior to the assessment year over the Index last published prior to commencement of the first assessment year. If such Index is discontinued, the Directors shall utilize a successor index, determined by the Directors in their sole judgment to be most similar to the discontinued Index.

The Directors may, after consideration of current maintenance costs and future costs and needs, fix the actual assessment for any year at a lesser amount. The Directors may change the basis and maximum assessment hereunder upon the approval of a majority of the Directors and the assent of a majority of the Owners voting in person or by proxy at a meeting duly called for such purpose, written notice of which shall have been sent to all Owners at least thirty (30) days in advance and shall set forth the purpose of the meetings.

Each annual assessment shall be levied prior to or during the year for which it is levied, notice thereof being given by first class, postage prepaid mail addressed to the last known or usual post office address of each Owner or by posting a notice of the assessment upon the Lot against which it applies. Each annual assessment shall be due on the date which is thirty (30) days after such mailing or posting, and shall become delinquent if not paid within thirty (30) days following such due date.

4. **Storm Water Facilities.** In addition to the foregoing, the Association is authorized to make separate annual assessments upon and against each Lot for the purpose of maintaining or repairing the storm water storage, disposal or sewer facilities located within the Subdivision; PROVIDED, HOWEVER, the separate power granted to the Association by this Section 4 shall expire with the calendar year following the acceptance of any such storm water facilities for maintenance by an appropriate governmental body or public utility. Any assessment made under authority granted in this, Section 4, shall be assessed and collected on a Village-by-Village basis in the same manner as the assessments under Section 3 above, and the Association shall have the same powers of collection and lien rights as provided in said Section 8 of this Article.

5. **Special Assessments.** If at any time the Directors consider it necessary to make any expenditure requiring an assessment additional to the annual assessment, they shall submit a written outline of the contemplated project and the amount of the required assessment to the then Owners. If such assessment is approved, either by a majority of the votes cast in person and by proxy at a meeting of the Owners called by the Directors or on written consent of a majority of the total votes entitled to vote, the Directors shall notify all Owners of the additional assessment; PROVIDED, HOWEVER, that in determining such required majority, each Owner shall be entitled to one (1) full vote, except that only those who have paid all assessments theretofore made shall be entitled to vote. The limit of the annual assessments for general purposes set forth in Section 3 of this Article IX shall not apply to any assessment made under the provisions of this Section 5. Notice of any special assessment shall be given in the same manner as notices of annual assessments are given, with such assessment becoming delinquent thirty (30) days after the date of such notice.

6. **Specific Assessments.** (a) The Association shall have the power to levy Specific Assessments against a particular Lot as follows:

(i) to cover the costs, including overhead and administrative costs, or providing services to the Lot upon request of an Owner pursuant to any menu of special services which may be offered by the Association. Specific Assessments for special services may be levied in advance of the provision of the requested service; and

(ii) to cover costs incurred in bringing the Lot into compliance with the terms and provisions of the Master Indenture, or costs incurred as a consequence of the conduct of the Owner or occupants of the Lot, their agents, contractors, employees, licensees, invitees, or guests.

(b) The Association may also levy a Specific Assessment against the Lots within any Village to reimburse the Association for costs incurred in bringing the Village into compliance with the provisions of the terms and provisions of the Master Indenture, provided the Board gives prior written notice to the Village Directors for the Village and an opportunity to correct any violation hereof.

7. **Prorations.** Should a Lot become subject to assessments after January 1 in any year, and should an annual or special assessment have been levied for that year, then such assessment shall

be adjusted so that such Lot shall be charged with a portion of the assessment prorated for the balance of that year.

8. Interest and Liens. All assessments shall bear interest at the rate of one percent (1%) over the Prime Rate from the date of delinquency, and such assessment, together with interest and costs of collection, shall constitute a lien upon the Lot against which assessed until fully paid. The lien of the assessments provided for herein shall be subordinate to the lien of any institutional (bank, savings and loan association, pension or retirement fund, insurance company or federally insured mortgage) first Mortgage now or hereafter placed upon the Lot with respect to which assessments have become due and payable prior to a sale or transfer of such Lot pursuant to foreclosure or transfer in lieu of foreclosure. Such sale or transfer shall not relieve such Lot from liability for any assessments thereafter becoming due, nor from the lien of any such subsequent assessment.

9. Exemptions. The following properties shall be exempt from the assessments, charges and liens created herein:

- (i) All Common Ground;
- (ii) Property owned by any Village Association for the common use and enjoyment of its members;
- (iii) All properties exempted from taxation under the laws of the State of Missouri;
and
- (iv) All Lots owned by Grantor until occupied for residential purposes or until title to the Lot has been transferred to the first purchaser thereof at retail (as distinguished from sales in bulk or at wholesale to others for development or resale). No Lot devoted to residential use shall be exempt from assessment hereunder.

Notwithstanding any provision of this Master Indenture to the contrary, if the assessments levied in any year under Section 3 of this Article IX are insufficient to support all budgeted expenses, Grantor may but shall not be obligated to advance funds to the Association for such purposes, and if it does so, shall have the right to be repaid the amount of all such advances with interest thereon at the rate of one percent (1%) over the Prime Rate.

10. Keeping of Funds. The Association shall deposit its funds in a bank protected by the Federal Deposit Insurance Corporation, the treasurer being bonded for the proper performance of his duties in an amount fixed by the Directors.

11. Ordinance Compliance. Notwithstanding any other conditions herein, the Association shall make suitable provisions for compliance with all subdivision and other ordinances, rules and regulations of the City including, but not limited to, maintenance and operation of street lights, easements and roadways (except for those easements and roadways as are dedicated to public bodies

or agencies), and for such purposes shall not be limited to the maximum assessment provided for herein.

12. Initial Capital Contribution. For the purpose of establishing the Subdivision, a one time, initial capital contribution of 2 times the annual assessment fee per Lot shall be assessed and collected at the time of the initial Owner of such Lots closing on its acquisition.

13. Change of Ownership. Upon the conveyance of any Lot in the Subdivision other than a conveyance by Grantor, the conveying Owner or grantee of such Lot shall give the Directors written notice of such conveyance and pay the Directors a One Hundred and 00/100 Dollar (\$100.00) transfer and administrative fee to cover the Directors' expenses resulting from such change in ownership. Until paid, the transfer fee due hereunder shall constitute a lien on the transferred Lot, and shall bear interest and be subject to collection as provided in Section 8 of this Article IX.

ARTICLE X

RESTRICTIONS

In addition to the limitations and restrictions imposed by the other provisions of this Master Indenture, the following restrictions are imposed upon and against the Property and each Lot now or hereafter existing therein:

1. Building Use. No building or structure shall, without the approval of the Directors, be used for a purpose other than that for which the building or structure was originally designed.

2. Building Size and Location. No building or structure shall be located on any Lot nearer to the street(s) upon which such Lot fronts or by which such lot is bordered or the side or rear lot lines than the front building line or side or rear set-back lines shown on the plat(s) of the Subdivision and/or prescribed by applicable ordinances.

3. Resubdivision. No Lot shall be resubdivided nor shall a fractional part of any Lot be sold without the consent of the Directors, which consent shall not be unreasonably withheld. In the event either of the foregoing is approved, the assessment attributable to the Lot so subdivided shall be pro-rated between the resulting Lots.

4. Commercial Use. Except for the promotional activities conducted by Grantor in connection with the development of the Property and the marketing and sale of residences therein and the conduct of a home occupation in strict accordance with the provisions of the applicable zoning ordinances, no commercial activities of any kind shall be conducted on any Lot or in any Living Unit.

5. Nuisances. No loud, noxious or offensive activity shall be carried on upon any Lot or the Common Ground or in any Living Unit in the Subdivision, nor shall anything be done thereon or

therein that may be or become a nuisance or annoyance to the neighborhood. Without limiting the generality of the foregoing, no motorized vehicles including, but not limited to, cars, go-carts, trailers, recreational vehicles (RVs), sleds, snow mobiles, trucks, vans, all-terrain vehicles (ATVs), motorcycles, dirt bikes, minibikes, tractors, truck-tractors, campers, or house trailers shall be operated, driven, ridden, parked, stored or otherwise placed on, in or about the Common Ground. No exterior lighting shall be directed outside the boundaries of a Lot or other parcel.

6. Obstructions. There shall be no obstruction of any portion of the Common Ground or any storage or construction or planting thereon by an Owner. No clothes, laundry or other articles or equipment shall be placed, hung, exposed or stored on any portion of the Common Ground or on any Lot or on the exterior of any building.

7. Animals. No animals, reptiles, birds, horses, rabbits, fowl, poultry, cattle or livestock of any kind shall be brought onto or kept on the Property, except that no more than two dogs, cats, or other household pets (except house pets with vicious propensities) may be kept or maintained on any Lot or in any Living Unit, provided that such pets are not kept for any commercial purpose and are at all times leashed and no "runs" or other outside structures are erected or installed therefor. The keeping of any pet which by reason of its noisiness or other factor is a nuisance (as determined by the Directors in their sole judgment) or annoyance to the neighborhood is prohibited.

8. Trucks, Boats, Etc. Except during periods of approved construction, no buses, trucks (other than vans and pick-up trucks not exceeding 3/4 ton) or commercial vehicles (as hereinafter defined), boats, motorcycles, recreational vehicles, campers, house trailers, boat trailers or trailers of any other description shall be permitted to be parked or stored on any Lot unless parked or stored in an enclosed garage. Further, no motor vehicle or equipment shall be repaired or otherwise serviced in front of or adjacent to any residence in the Subdivision. As used herein, "commercial vehicle" shall mean a motor vehicle designed or regularly used for carrying freight and merchandise or more than eight (8) passengers.

9. Abandoned Vehicles. No abandoned cars, motorcycles, jeeps, trucks or other motor vehicles of any kind whatsoever that are unable to move under their own power may be stored or permitted to remain upon any of the Common Ground or on any Lot. If any such motor vehicle is so stored or remains, the Directors may remove the same at the Owner's expense.

10. Vehicular Sight Lines. No fence, wall, tree, hedge or shrub planting shall be maintained in such manner to obstruct sight lines for vehicular traffic. Except as may be required to comply with the prior sentence, no live tree shall be removed without the approval of the Directors.

11. Out Buildings and Installations. No structure of a temporary character, trailer, tent, shack, garage, metal or wooden shed, barn or other out building shall be installed, constructed or maintained on any Lot at any time. Permanent basketball or other sports goals or game boards shall not be permitted in the Subdivision, and temporary goals shall not be placed on the Common Ground.

12. Fences. Fencing shall only be permitted in the Subdivision in strict compliance with the mandates of the Subdeclaration governing the Village in which installed and the following:

(i) Fences shall only be permitted in Village A to hide trash cans and dumpsters, along alleys and streets, between buildings to demarcate "yard" spaces, and to enclose privacy areas adjacent to Living Units and between Living Units and garages; provided, however, decorative fences not exceeding three feet (3') may be installed by the Village Directors in the front yards of the Living Units or elsewhere for entrance monument purposes; and

(ii) Fences shall be permitted on any Lot in Villages B and C anywhere behind a line extending parallel to the front of the exterior of the Living Unit on such Lot, and decorative fences not exceeding four feet (4') shall be permitted in front of such line or elsewhere for entrance monument purposes.

The material of any fencing installed in the Subdivision shall be wrought iron, ornamental metal or vinyl.

13. Signs. Other than a "for sale" sign which is no larger than 18" by 24", no signs, advertisements, billboards or advertising structures of any kind may be erected, maintained or displayed on any Lot; provided, however, that nothing herein shall prohibit signs erected or displayed by Grantor in connection with the development of the Subdivision and the marketing and sale of residences therein.

14. Utility and Drainage Easements. Easements for installation and maintenance of utilities and drainage facilities are established in this Master Indenture and are or will be reserved as shown on the recorded plat(s) of the Subdivision. Within these easements, no structure, planting or other material shall be placed or permitted to remain which may damage or interfere with the installation and maintenance of utilities, or which may change the direction or flow of drainage channels in the easements, or which may obstruct or retard the flow of water through drainage channels in the easements.

15. Oil Drilling. No oil drilling, oil development operations, oil refining, quarrying or mining operations of any kind shall be permitted upon or in any Lot or portion of the Property, nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted upon or in any Lot or portion of the Property. No derrick or other structure designated for use in boring for oil or natural gas shall be erected, maintained or permitted upon any Lot or portion of the Property.

16. Cul-De-Sac, Etc. No above-ground structure, other than street lights and fire hydrants, may be erected upon a cul-de-sac island, divided street entry island, or median strip.

17. Hazardous and/or Unsightly Materials. No above-ground gas, propane or gasoline, oil or other hazardous material storage tanks or devices shall be permitted upon or in any Lot or Living Unit or the Common Ground of the Subdivision.

ARTICLE XI

MORTGAGEE PROVISIONS

The following provisions are for the benefit of holders, insurers and guarantors of first Mortgages on Lots or Living Units in the Subdivision.

1. Notices of Action. An institutional holder, insurer, or guarantor of a first Mortgage which provides a written request to the Association (such request to state the name and address of such holder, insurer, or guarantor and the street address of the Lot to which its Mortgage relates, thereby becoming an "Eligible Holder"), will be entitled to timely written notice of:

(a) Any condemnation loss or any casualty loss which affects a material portion of the Property or which affects any Lot or Living Unit on which there is a first Mortgage held, insured, or guaranteed by such Eligible Holder;

(b) Any delinquency in the payment of assessments or charges owed by an Owner subject to the Mortgage of such Eligible Holder, where such delinquency has continued for a period of sixty (60) days, or any other violation of this Master Indenture relating to such Lot or Living Unit or the Owner or occupant which is not cured within sixty (60) days;

(c) Any lapse, cancellation, or material modification of any insurance policy maintained by the Association; or

(d) Any proposed action which would require the consent of a specified percentage of Eligible Holders.

2. Special FHLMC Provision. So long as required by the Federal Home Loan Mortgage Corporation, the following provisions apply in addition to and not in lieu of the foregoing. Unless at least sixty-seven percent (67%) of the first Mortgagees or at least sixty-seven percent (67%) of the Class "A" Members consent, the Association shall not:

(a) By act or omission seek to abandon, partition, subdivide, encumber, sell, or transfer all or any portion of the real property comprising the Common Ground which the Association owns, directly or indirectly (the granting of easements for utilities or other similar purposes consistent with the intended use of the Common Ground shall not be deemed a transfer within the meaning of this subsection);

(b) Change the method of determining the obligations, assessments, dues, or other charges which may be levied against an Owner (a decision, including contracts, by the Board or provisions of any declaration subsequently Recorded on any portion of the Property regarding assessments for Villages or other similar areas shall not be subject to this provision where such decision or subsequent declaration is otherwise authorized by this Master Indenture);

(c) By act or omission change, waive, or abandon any scheme of regulations or enforcement pertaining to architectural design, exterior appearance or maintenance of the Lots, Living Units and Common Ground (the issuance and amendment of architectural standards, procedures, rules and regulations, or use restrictions shall not constitute a change, waiver, or abandonment within the meaning of this provision);

(d) Fail to maintain insurance, as required by this Master Indenture; or

(e) Use hazard insurance proceeds for any Common Ground losses for other than the repair, replacement, or reconstruction of such property.

First Mortgagees may, jointly or singly, pay taxes or other charges which are in default and which may or have become a charge against the Common Ground and may pay overdue premiums on casualty insurance policies or secure new casualty insurance coverage upon the lapse of an Association policy, and first Mortgagees making such payments shall be entitled to immediate reimbursement from the Association.

3. Other Provisions for First Lien Holders. To the extent not inconsistent with Missouri law:

(a) Any restoration or repair of the Property after a partial condemnation or damage due to an insurable hazard shall be performed substantially in accordance with this Master Indenture and the original plans and specifications unless the approval is obtained of the Eligible Holders of first Mortgages on Lots to which at least fifty-one percent (51%) of the votes of Lots subject to Mortgages held by such Eligible Holders are allocated.

(b) Any election to terminate the Association after substantial destruction or a substantial taking in condemnation shall require the approval of the Eligible Holders of first Mortgages on Lots to which at least fifty-one percent (51%) of the votes of Lots subject to Mortgages held by such Eligible Holders are allocated.

4. Amendments to Documents. The following provisions do not apply to amendments to the constituent documents or termination of the Association as a result of destruction, damage, or condemnation pursuant to Section 3(a) and (b).

(a) The consent of at least sixty-seven percent (67%) of the Class "A" Members and of Grantor, so long as it owns any land subject to this Master Indenture, and the approval of the Eligible Holders of first Mortgages on Lots to which at least sixty-seven percent (67%) of the votes of Lots subject to a Mortgage appertain, shall be required to terminate the Association.

(b) The consent of at least sixty-seven percent (67%) of the Class "A" Members and of Grantor, so long as it owns any land subject to this Master Indenture, and the approval of Eligible Holders of first Mortgages on Lots to which at least fifty-one percent (51%) of the votes of Lots

subject to a Mortgage appertain, shall be required materially to amend any provisions of the Master Indenture, or to add any material provisions thereto which establish, provide for, govern, or regulate any of the following:

- (i) voting;
- (ii) assessments, assessment liens, or subordination of such liens;
- (iii) reserves for maintenance, repair, and replacement of the Common Ground;
- (iv) insurance or fidelity bonds;
- (v) rights to use the Common Ground;
- (vi) responsibility for maintenance and repair of the Property;
- (vii) expansion or contraction of the Property or the addition, annexation, or withdrawal of property to or from the Association;
- (viii) boundaries of any Lot;
- (ix) leasing of Lots;
- (x) imposition of any right of first refusal or similar restriction of the right of any Owner to sell, transfer, or otherwise convey his or her Lot;
- (xi) establishment of self-management by the Association where professional management has been required by an Eligible Holder; or
- (xii) any provisions included in this Master Indenture which are for the express benefit of holders, guarantors, or insurers of first Mortgages on Lots.

5. No Priority. No provision of this Master Indenture gives or shall be construed as giving any Owner or other party priority over any rights of the first Mortgagee on any Lot in the case of distribution to such Owner of insurance proceeds or condemnation awards for losses to or a taking of the Common Ground.

6. Notice to Association. Upon request, each Owner shall be obligated to furnish to the Association the name and address of the holder of any Mortgage encumbering such Owner's Lot.

7. Failure of Mortgagee to Respond. Any Mortgagee who receives a written request from the Board to respond to or consent to any action shall be deemed to have approved such action if the Association does not receive a written response from the Mortgagee within thirty (30) days of

the date of the Association's request, provided such request is delivered to the Mortgagee by certified or registered mail, return receipt requested.

8. Construction of Article XI. Nothing contained in this Article shall be construed to reduce the percentage vote that must otherwise be obtained under this Master Indenture or Missouri law for any of the acts set out in this Article.

9. HUD/VA Approval. As required by law, as long as there is a Class "B" membership, the following actions shall require the prior approval of the U.S. Department of Housing and Urban Development or the U.S. Department of Veterans Affairs, if either such agency is insuring or guaranteeing the Mortgage on any Lot: merger, consolidation or dissolution of the Association; annexation of additional property; dedication, conveyance or mortgaging of Common Ground; or material amendment of this Master Indenture. The granting of easements for utilities or other similar purposes consistent with the intended use of the Common Ground shall not be deemed a conveyance within the meaning of this Section.

10. Actions Requiring Owner Approval. As required by law, if either the U.S. Department of Housing and Urban Development or the U.S. Department of Veterans Affairs insures or guarantees the Mortgage on any Lot, then the following actions shall require the prior approval of not less than two-thirds (2/3) of the Class "A" Members and the consent of the Class "B" Member, if such exists: merger, consolidation or dissolution of the Association; annexation of additional property and dedication, conveyance or mortgaging of Common Ground. Notwithstanding anything to the contrary in this Section, the Association, acting through the Board, may grant easements over the Common Ground for installation and maintenance of utilities and drainage facilities and for other purposes not inconsistent with the intended use of the Common Ground, without the approval of the membership.

ARTICLE XII

GENERAL PROVISIONS

These general provisions shall apply to the foregoing Master Indenture:

1. Enforcement. Enforcement of any of these covenants shall be by proceedings at law or in equity against any person or persons violating or attempting to violate any such covenants and may be brought to restrain any such violation and to recover damages therefor together with reasonable attorneys' fees and court costs.

2. Actions by Directors. The Directors are authorized to act through a representative, provided, however, that all acts of the Directors shall be agreed upon by at least a majority of said Directors. No Director shall be held personally responsible for his wrongful acts or for the wrongful acts of others, and no Director shall be held personally liable for injury or damage to persons or property by reason of any act or failure to act of the Directors, collectively or individually. The Directors from time to time serving hereunder, except Directors appointed pursuant to Article IV,

Section 4 hereof, shall not be entitled to any compensation or fee for services performed pursuant to this Master Indenture.

3. Adjoining Tracts. The Association is authorized and empowered to cooperate and contract with trustees of adjoining or nearby tracts in the development and maintenance of facilities inuring to the benefit and general welfare of the inhabitants of the entire area.

4. Amendments. Until all Lots authorized to be developed in the Subdivision have been sold and conveyed for residential use, the provisions of this Master Indenture may only be amended, modified or changed by Grantor, and thereafter, the provisions hereof may only be amended, modified or changed by the written consent of two-thirds (2/3rds) of all Owners. To be effective, any amendment, modification or change to the provisions of this Master Indenture shall be recorded in the Office of the Recorder of Deeds for the County.

5. Severability, Etc. All covenants and agreements herein are expressly declared to be independent and not interdependent. No laches, waiver, estoppel, condemnation or failure of title as to any part of the Property or any Lot in the Property shall be of any effect to modify, invalidate or annul any grant, covenant or agreement herein with respect to the remainder of the Property, saving always the right to amendment, modification or repeal as hereinabove expressly provided.

6. Invalidation. Invalidation of any one of the covenants of this Master Indenture shall in no way affect any other provision hereof.

7. Assignment by Grantor. The rights, powers and obligations granted to Grantor may be assigned or transferred by Grantor, in whole or in part, to any other person or entity or persons or entities to whom Grantor sells, transfers or assigns all or any of the Lots or Living Units in the Property.

8. Rights During Construction and Sale. Notwithstanding any provision contained in this Master Indenture to the contrary, until all Lots authorized to be developed in the Subdivision have been sold and conveyed for residential use, Grantor and its successors and assigns shall have the right and privilege (i) to erect and maintain advertising signs, sales flags and other sales devices and banners for the purpose of aiding the sale of Lots in the Subdivision; (ii) to maintain sales, business and construction offices in display homes or trailers in the Subdivision (including without limitation, the Common Ground) to facilitate the completion of development of the Subdivision and construction and sale of residences; and (iii) to park and to allow its subcontractors to park trucks and stockpile and store materials on any Lot(s) or on the Common Ground or other parcels in the Subdivision. Grantor's construction activities shall not be considered a nuisance, and Grantor hereby reserves the right and privilege for itself and its successors and assigns to conduct the activities enumerated in this Section until all Lots in the Subdivision have been sold and conveyed for residential purposes. The provisions of this Article XII, Section 8, shall not be amended, modified or deleted without the prior written consent of Grantor.

9. Term. Except where permanent easements or other permanent rights or interests are herein created, the covenants and restrictions of this Master Indenture shall run with and bind the Property for a term which is the longer of: (i) thirty (30) years from the date of recordation of this Master Indenture, after which said covenants and restrictions shall be automatically extended for successive periods of ten (10) years each, unless an instrument signed by the then Owners of two-thirds ($\frac{2}{3}$) of the Lots subject hereto has been recorded agreeing to terminate this Master Indenture as of the end of any such ten (10) year period, but in no event prior to the vacation of the record plat(s) of the Subdivision by the City; or (ii) as to any subdivision of the Property, for the duration of the subdivision encumbered hereby unless continued in effect by the vote of two-thirds ($\frac{2}{3}$) of the Lots in such subdivision by an appropriate instrument filed of record prior to the vacation of the plat(s) of such subdivision as aforesaid. No such agreement of termination shall be effective unless made and recorded one (1) year in advance of the effective date of such termination, and unless written notice of the proposed agreement of termination is sent to every Owner at least ninety (90) days in advance of any action taken.

[REMAINDER OF PAGE INTENTIONALLY BLANK]

IN WITNESS WHEREOF, Grantor has executed this Master Indenture this 3rd day of JANUARY 2006.

GRANTOR:

KRK DEVELOPMENT, LLC, a Missouri limited liability company

By:


Bradley M. Kazmaier, Manager

STATE OF MISSOURI)

) SS

COUNTY OF ST. CHARLES)

On this 3rd day of JANUARY, 2006, before me personally appeared Bradley M. Kazmaier, Manager of KRK Development, LLC, a Missouri limited liability company, known to me to be the person who executed the foregoing in behalf of said corporation, and acknowledged to me that he executed the same for the purposes therein stated.

IN TESTIMONY WHEREOF, I have hereunder set my hand and affixed my official seal in the County and State aforesaid, the day and year first above written.



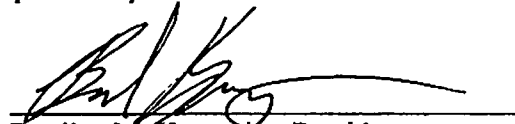
ROBERT N. KAHN
St. Louis County
My Commission Expires
April 25, 2008


Notary Public

ASSOCIATION:

CHARLESTOWNE MASTER ASSOCIATION, a Missouri
not-for-profit corporation

BY:


Bradley M. Kazmaier, President

STATE OF MISSOURI)
) SS
COUNTY OF ST. CHARLES)

On this 3rd day of JANUARY, 2006, before me personally appeared Bradley M. Kazmaier, President of Charlestowne Master Association, a Missouri not-for-profit corporation, known to me to be the person who executed the foregoing in behalf of said corporation, and acknowledged to me that he executed the same for the purposes therein stated.

IN TESTIMONY WHEREOF, I have hereunder set my hand and affixed my official seal in the County and State aforesaid, the day and year first above written.



ROBERT N. KAHN
St. Louis County
My Commission Expires
April 25, 2008


Notary Public

EXHIBIT A
LEGAL DESCRIPTION
CHARLESTOWN PLAT 1

A TRACT OF LAND BEING PART OF SURVEYS 202, 203, 204, 205, 206, 207 AND 208 OF THE ST. CHARLES COMMONFIELDS, TOWNSHIP 47 NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN, CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE INTERSECTION OF THE NORTHWEST LINE OF 30 FOOT WIDE STRIP CONVEYED TO COUNTY OF ST. CHARLES FOR ROAD DEDICATION PURPOSES BY DEED RECORDED IN BOOK 2394, PAGE 2209 OF THE ST. CHARLES COUNTY RECORDER'S OFFICE, WITH THE SOUTHWEST LINE OF PROPERTY CONVEYED TO UNNERSTALL, L. L. C. BY DEED RECORDED IN BOOK 2796, PAGE 1969 OF SAID RECORDER'S OFFICE;

THENCE ALONG SAID NORTHWEST LINE OF A 30 FOOT WIDE STRIP, SOUTH 49 DEGREES 00 MINUTES 07 SECONDS WEST, A DISTANCE OF 341.55 FEET TO THE NORTHEAST LINE OF PROPERTY CONVEYED TO MARK AND CYNTHIA NYSTROM BY DEED RECORDED IN BOOK 1836, PAGE 786 OF SAID RECORDER'S OFFICE;

THENCE ALONG SAID NORTHEAST LINE AND THE NORTHEAST LINE OF PROPERTY CONVEYED TO MARK AND CYNTHIA NYSTROM BY DEED RECORDED IN BOOK 2444, PAGE 1604 OF SAID RECORDER'S OFFICE, NORTH 40 DEGREES 35 MINUTES 52 SECONDS WEST, A DISTANCE OF 291.98 FEET;

THENCE SOUTH 49 DEGREES 52 MINUTES 43 SECONDS WEST, A DISTANCE OF 443.09 FEET TO THE NORTHEAST LINE OF PROPERTY CONVEYED TO THE TRUST OF SHELLEY WILLIAMS, TRUSTEE BY DEED RECORDED IN BOOK 1722, PAGE 245 OF SAID RECORDER'S OFFICE;

THENCE ALONG THE SAID NORTHEAST LINE OF THE WILLIAMS PROPERTY AND THE NORTH LINE OF PROPERTY CONVEYED TO ANNA MAY MERZ BY DEED RECORDED IN BOOK 300, PAGE 13 OF SAID RECORDER'S OFFICE, NORTH 47 DEGREES 35 MINUTES 04 SECONDS WEST, A DISTANCE OF 2658.35 FEET;

THENCE NORTH 52 DEGREES 54 MINUTES 06 SECONDS EAST, A DISTANCE OF 1555.17 FEET TO THE SOUTHWEST LINE OF A 20 FOOT WIDE ROADWAY STRIP, SAID SOUTHWEST LINE BEING 20 FEET PERPENDICULARLY DISTANT SOUTHWEST OF AND PARALLEL WITH THE NORTHEAST LINE OF AFORESAID SURVEY 208;

THENCE ALONG THE SOUTHWEST LINE OF SAID 20 FOOT WIDE ROADWAY STRIP, SOUTH 47 DEGREES 33 MINUTES 33 EAST, A DISTANCE OF 1481.77 FEET TO THE NORTHWEST LINE OF A TRACT OF LAND NOW OR FORMERLY OF UNNERSTALL, L.L.C., AS RECORDED IN DEED BOOK 4165, PAGE 2464 OF SAID RECORDER'S OFFICE;

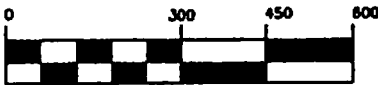
THENCE ALONG SAID NORTHWEST AND SOUTHWEST LINE OF THE UNNERSTALL PROPERTIES AFOREMENTIONED, SOUTH 53 DEGREES 36 MINUTES 57 SECONDS WEST, A DISTANCE OF 800.03 FEET; AND SOUTH 47 DEGREES 33 MINUTES 33 SECONDS EAST, A DISTANCE OF 1435.48 FEET TO THE POINT OF BEGINNING.

THE ABOVE DESCRIBED TRACT OF LAND CONTAINING 73.810 ACRES IS BASED UPON A BOUNDARY SURVEY PERFORMED BY COLE & ASSOCIATES INC. DURING THE MONTH OF AUGUST AND SEPTEMBER 2004 AND IS SUBJECT TO ALL EASEMENTS, RESTRICTIONS, RESERVATIONS AND CONDITIONS OF RECORD, IF ANY.

EXHIBIT A-1

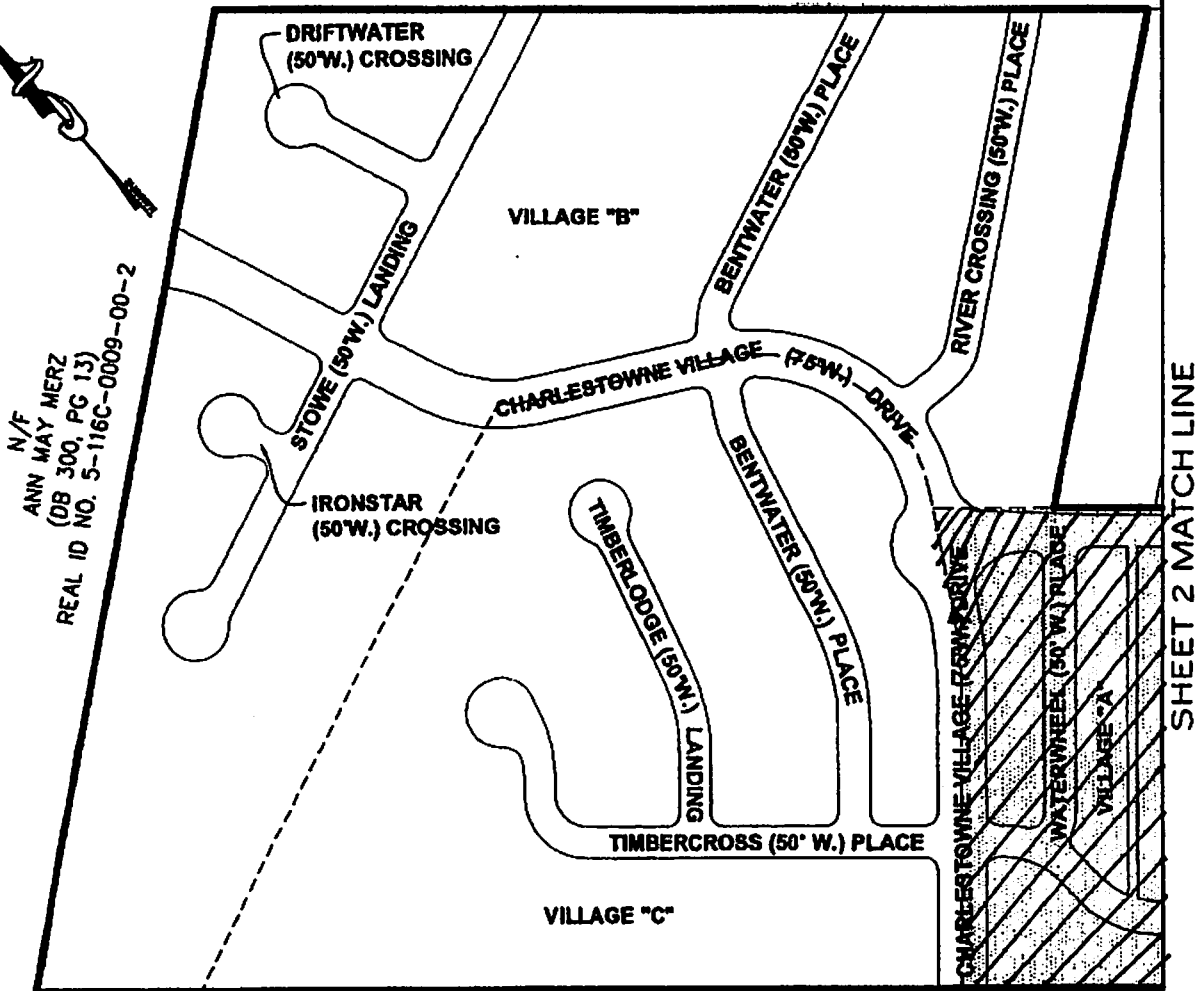
20060104000010750 37/42
Bk:DE4386 Pg:1622

GRAPHIC SCALE



1 inch = 300 ft.

N/F
GW LAND LLC
(DB 3748, PG 1213)
REAL ID NO. 5-116C-0009-00-7



N/F
ANN MAY MERZ
(DB 300, PG 13)
REAL ID NO. 5-116C-0009-00-2

N/F
ANN MERZ REVOCABLE TRUST
(DB 300, PG 13)
REAL ID NO. 5-116C-009-00-2

N/F
TRUST OF SHELLEY WILLIAMS
(DB 1722, PG 245)
REAL ID NO. 5-116C-0009-00-9

EXHIBIT A-1

INITIAL: _____

CHARLESTOWNE PLAT 1
A TRACT OF LAND BEING PART OF SURVEYS 202, 203, 204, 205, 206,
207 AND 208 OF THE ST. CHARLES COMMONFIELDS, TOWNSHIP 47
NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN,
CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI

RECORD AS IS

EXHIBIT A-1

20060104000010750 38/42
Bk:DE4386 Pg:1623

GRAPHIC SCALE

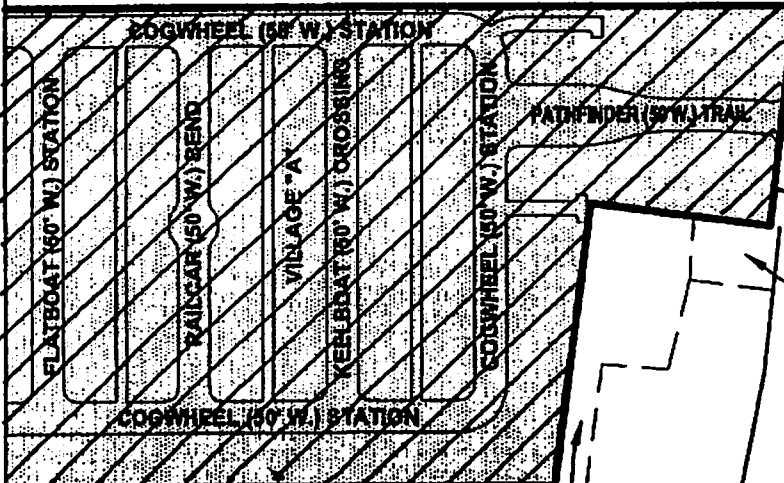


1 inch = 300 ft.

SHEET 1 MATCH LINE

N/F
GW LAND LLC
(DB 3748, PG 1213)
REAL ID NO. 5-116C-0009-00-7

N/F
UNNERSTALL, L.L.C.
(DB 2796, PG 1968)
REAL ID NO. 5-116C-0009-00-8.21



BOSCHERTOWN ROAD

N/F
MARK & CYNTHIA
NYSTROM (H/W)
(DB 1836 PG 786)

N/F
MARK & CYNTHIA NYSTROM (H/W)
(DB 2444 PG 1604)
REAL ID NO. 5-116C-0009-00-8

N/F
TRUST OF SHELLEY WILLIAMS
(DB 1722, PG 245)
REAL ID NO. 5-116C-0009-00-9

RECORD AS IS

EXHIBIT A-1

INITIAL: _____

CHARLESTOWNE PLAT 1
A TRACT OF LAND BEING PART OF SURVEYS 202, 203, 204, 205, 206,
207 AND 208 OF THE ST. CHARLES COMMONFIELDS, TOWNSHIP 47
NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN,
CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI

EXHIBIT A-2

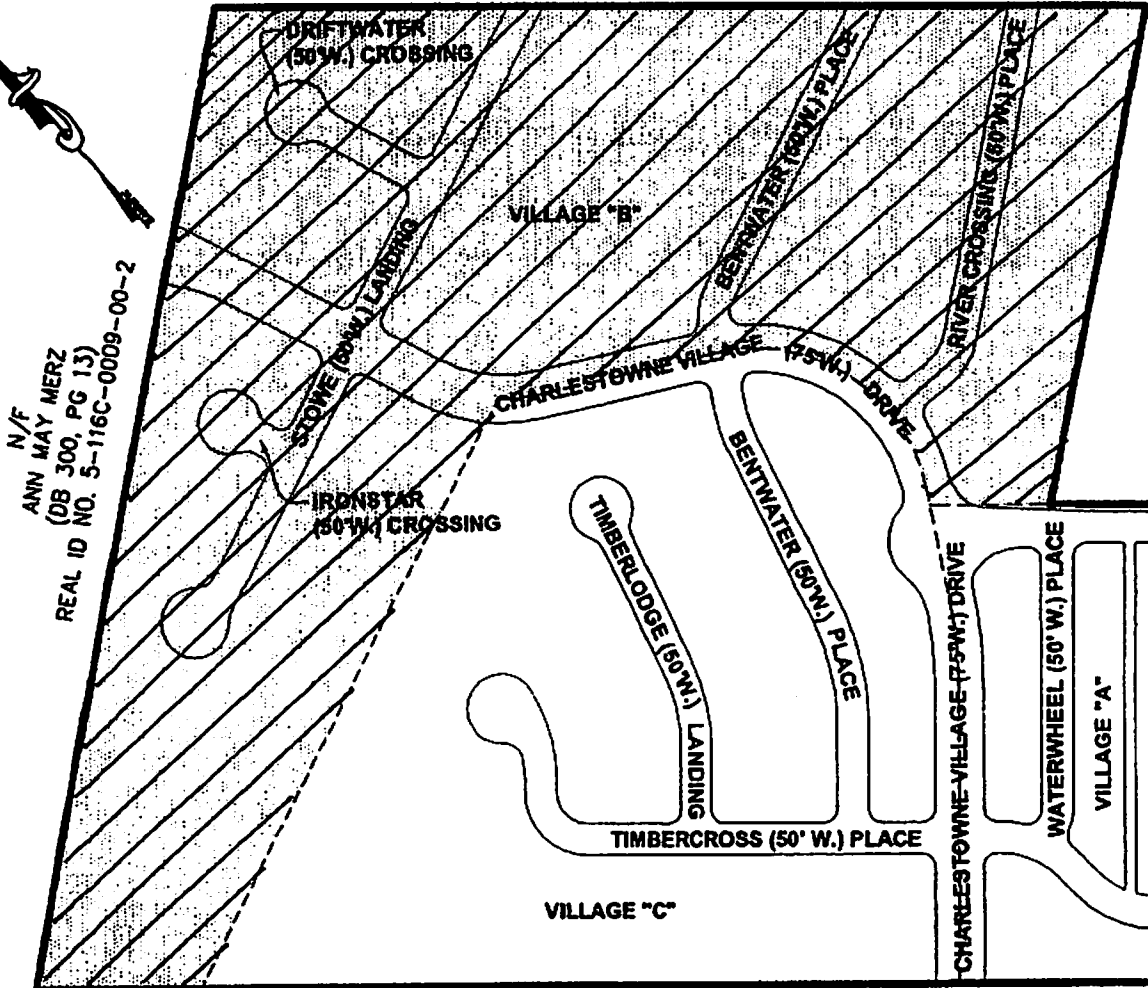
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Bk:DE4386 Pg:1624

GRAPHIC SCALE



1 inch = 300 ft.

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(DB 3748, PG 1213)
REAL ID NO. 5-116C-0009-00-7



N/F
ANN MAY MERZ
(DB 300, PG 13)
REAL ID NO. 5-116C-0009-00-2

N/F
ANN MERZ REVOCABLE TRUST
(DB 300, PG 13)
REAL ID NO. 5-116C-009-00-2

N/F
TRUST OF SHELLEY WILLIAMS
(DB 1722, PG 245)
REAL ID NO. 5-116C-0009-00-9

SHEET 2 MATCH LINE

NEUTRAL AS IS

EXHIBIT "A-2"

INITIAL: _____

CHARLESTOWNE PLAT 1
A TRACT OF LAND BEING PART OF SURVEYS 202, 203, 204, 205, 206,
207 AND 208 OF THE ST. CHARLES COMMONFIELDS, TOWNSHIP 47
NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN,
CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI

EXHIBIT A-2

20060104000010750 40/42
Bk:DE4386 Pg:1625

GRAPHIC SCALE

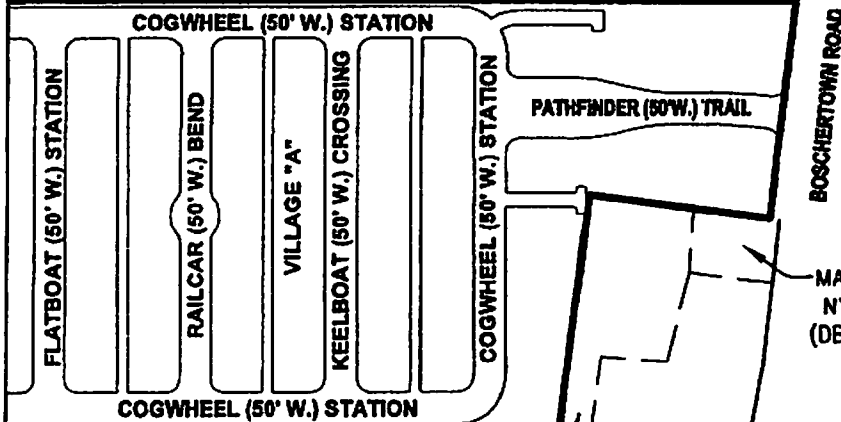


1 inch = 300 ft.

SHEET 1 MATCH LINE

N/F
GW LAND LLC
(DB 3748, PG 1213)
REAL ID NO. 5-116C-0009-00-7

N/F
UNNERSTALL, L.L.C.
(DB 2796, PG 1968)
REAL ID NO. 5-116C-0009-00-8.21



N/F
MARK & CYNTHIA
NYSTROM (H/W)
(DB 1836 PG 786)

N/F
MARK & CYNTHIA NYSTROM (H/W)
(DB 2444 PG 1604)
REAL ID NO. 5-116C-0009-00-8

N/F
TRUST OF SHELLEY WILLIAMS
(DB 1722, PG 245)
REAL ID NO. 5-116C-0009-00-9

RECORD AS IS

EXHIBIT "A-2"

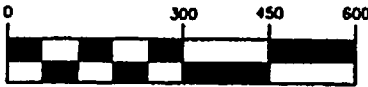
INITIAL: _____

CHARLESTOWNE PLAT 1
A TRACT OF LAND BEING PART OF SURVEYS 202, 203, 204, 205, 206,
207 AND 208 OF THE ST. CHARLES COMMONFIELDS, TOWNSHIP 47
NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN,
CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI

EXHIBIT A-3

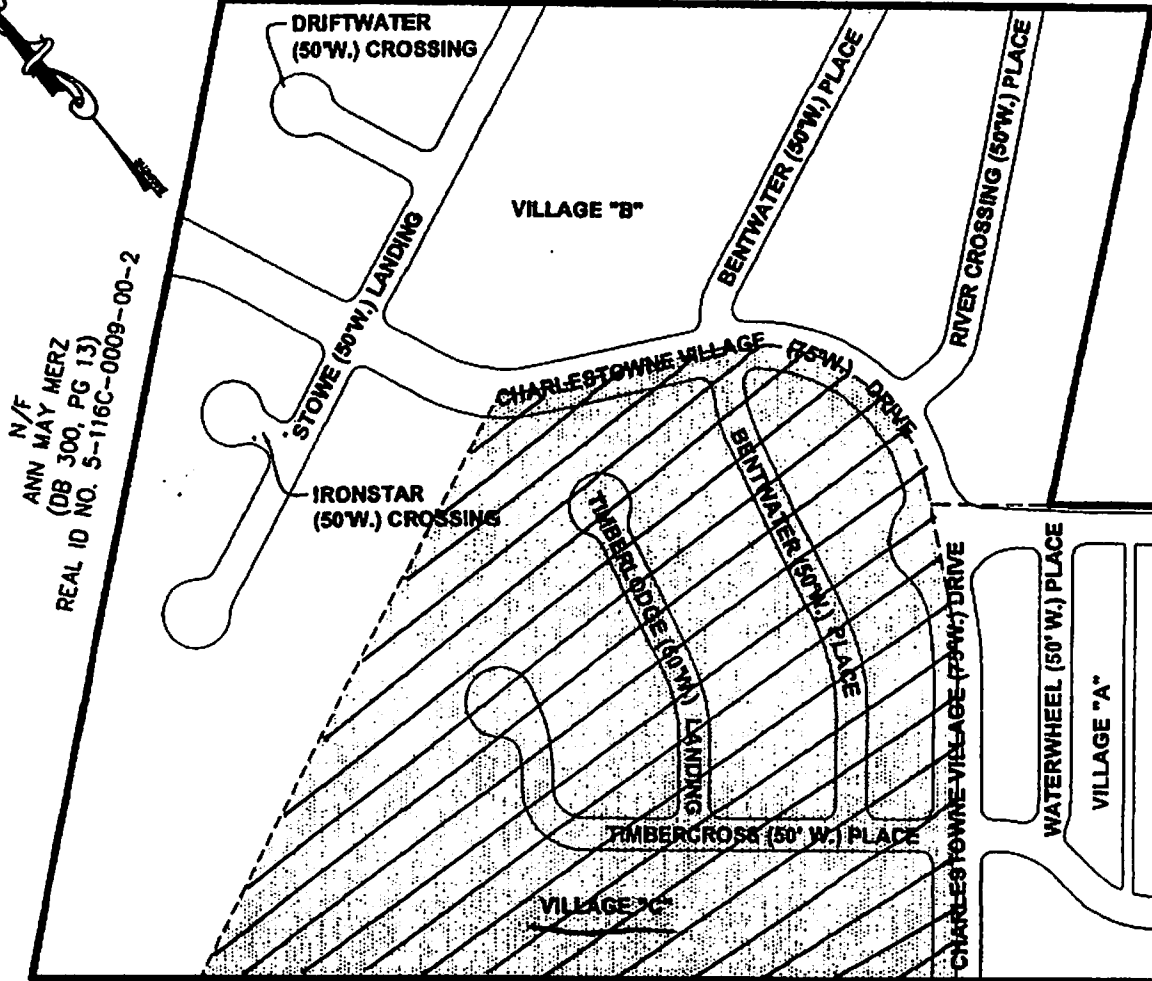
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GRAPHIC SCALE



1 inch = 300 ft.

N/F
GW LAND LLC
(DB 3748, PG 1213)
REAL ID NO. 5-116C-0009-00-7



N/F
ANN MAY MERZ
(DB 300, PG 13)
REAL ID NO. 5-116C-0009-00-2

N/F
ANN MERZ REVOCABLE TRUST
(DB 300, PG 13)
REAL ID NO. 5-116C-009-00-2

N/F
TRUST OF SHELLEY WILLIAMS
(DB 1722, PG 245)
REAL ID NO. 5-116C-0009-00-9

SHEET 2 MATCH LINE

RECORD AS IS

EXHIBIT A-3

INITIAL: _____

CHARLESTOWNE PLAT 1
A TRACT OF LAND BEING PART OF SURVEYS 202, 203, 204, 205, 206,
207 AND 208 OF THE ST. CHARLES COMMONFIELDS, TOWNSHIP 47
NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN,
CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI

EXHIBIT A-3



interfuses

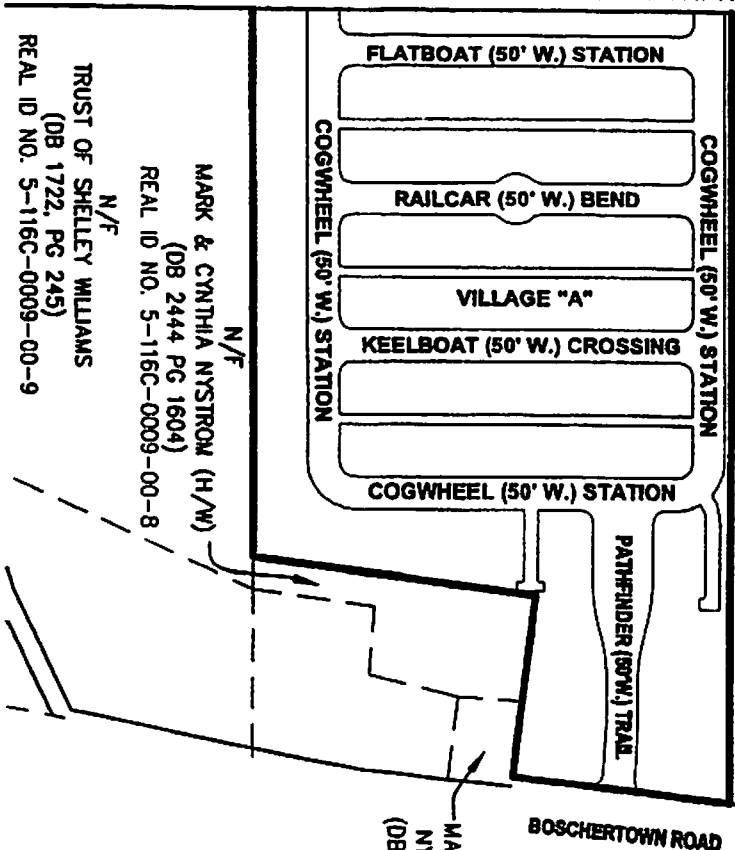
GRAPHIC SCALE



N/F
GW LAND LLC
(DB 3748, PG 1213)
REAL ID NO. 5-116C-0009-00-7

N/F
UNNERSTALL, L.L.C.
(DB 2796, PG 1968)
REAL ID NO. 5-116C-0009-00-8.21

SHEET 1 MATCH LINE



N/F
MARK & CYNTHIA
NYSTROM (H/W)
(DB 1836 PG 786)

N/F
MARK & CYNTHIA NYSTROM (H/W)
(DB 2444 PG 1604)
REAL ID NO. 5-116C-0009-00-8
N/F
TRUST OF SHELLEY WILLIAMS
(DB 1722, PG 245)
REAL ID NO. 5-116C-0009-00-9

EXHIBIT A-3

INITIAL: _____

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NORTH, RANGE 5 EAST OF THE FIFTH PRINCIPAL MERIDIAN,
CITY OF ST. CHARLES, ST. CHARLES COUNTY, MISSOURI

RECORD AS IS